

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 17-05

CMI DISTRIBUTION, INC.

COMPLAINANT,

v.

SERVICE BY AIR, INC., RADIANT CUSTOMS SERVICES INC. (FORMERLY KNOWN
AS SBA CONSOLIDATORS, INC.) and LAS FREIGHT SYSTEM LTD.

RESPONDENTS.

MOTION FOR ENLARGEMENT OF TIME
SERVICE BY AIR, INC.

Respondent Service By Air, Inc. (“SBA”), pursuant to 46 CFR §502.102, respectfully requests an enlargement of the time to file its response to CMI Distribution, Inc.’s Petition for Attorney’s Fees filed August 19, 2021. SBA requests that the time for its response be enlarged from September 8, 2021 as currently scheduled to September 22, 2021.

Under 46 CFR §502.105, “... the presiding officer, for good cause, may ...enlarge any time limit prescribed in the rules of this Part...”

Good cause exists for SBA’s request for a 14-day extension. Its counsel, Steven W. Block, recently moved to a new law firm and is transitioning his practice in the challenging pandemic environment. CMI filed with its petition extensive invoice documentation that will take time to review. Declaration of Steven W. Block.

Counsel for SBA conferred with counsel for CMI via email on August 26, 2021 regarding this motion for enlargement of time. Counsel for CMI consents to the requested 14-day extension. *Id.*

Because good cause exists for an enlargement of time, and the request is timely and unopposed, SBA respectfully requests a 14-day enlargement of the time to oppose CMI’s petition.

Dated this 27th day of August, 2021.

Respectfully submitted,



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Attorney for Respondents

CERTIFICATE OF SERVICE

The undersigned declares that on the date stated below I caused to be served the foregoing document, upon the following in the manner of service indicated:

Brendan Collins
GKG Law, P.C.
The Foundry Building
1055 Thomas Jefferson Street NW
Suite 500
Washington, DC 20007
Attorneys for CMI Distribution, Inc.

- ☒ Via First Class U.S. Mail
- ☐ Via Priority Mail Express
- ☐ Via Express Mail
- ☐ Via Hand Delivery
- ☒ Via Electronic Mail
- ☐ Via E-Service Within Clerk's online eFiling Application

I declare under penalty of perjury under the laws of the state of Washington that the foregoing is true and correct.

Executed at Seattle, Washington, this 27th day of August, 2021.



Alisa Flabel